

HOUSE BILL 2449

By Garrett

AN ACT to amend Tennessee Code Annotated, Title 10,
relative to reconsideration of library materials.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 10, Chapter 3, is amended by adding
the following as a new section:

10-3-112. Materials reconsideration policy.

(a) As used in this section, "item" is to be broadly construed and includes a
physical book, electronic book, magazine, audio recording, digital resource, and game.

(b) Each public library established under the authority of this chapter must adopt
a materials reconsideration policy that provides a process by which any legal resident of
the county where the library is located may request that the library withdraw an item from
the library's collection or reclassify or move the item to a different area in the library.

(c) The materials reconsideration policy adopted pursuant to this section must:

(1) Allow for any item in the library's collection, whether circulated
internally for in library use only or circulated externally for use outside of the
library, to be subject to a request for reconsideration; provided, that no more than
one (1) item is included in a single materials reconsideration application form;

(2) Utilize a materials reconsideration application form developed by the
respective library administrator that a resident may use to request
reconsideration of an item in the library's collection;

(3) Allow any legal resident of the county in which the library is located to
request that the library withdraw, move, or reclassify an item from the library's
collection;

(4) Require a materials reconsideration application form submitted by a resident to a library to be sent to the applicable library board within seven (7) days of receipt of the materials reconsideration application form. Within ninety (90) days of receipt of a materials reconsideration application form, the library board must respond to the applicant stating:

(A) The item will be kept in the library's collection with no change made to the item's location or classification;

(B) The item will be kept in the library's collection, but relocated from its current physical location in the library's collection to an alternate location in the library's collection or, if the item is not a physical item, the item will be reclassified;

(C) The item will be removed from the library's collection; or

(D) Provide the applicant, in writing, the time reasonably necessary to complete the item's review and provide a full response to the applicant;

(5) Require that the library board approve the action that a library takes in response to each materials reconsideration application;

(6) Provide that all decisions of the library board concerning an item are final and that the decision as to an item will remain in effect for a specified time period that does not exceed thirty (30) months;

(7) Establish that the library board shall not consider a materials reconsideration application form for an item for which a decision is in effect pursuant to subdivision (c)(6). This subdivision (c)(7) does not prohibit the library board from reconsidering the item for which a decision is in effect pursuant to subdivision (c)(6) on the library board's own motion; and

(8) Establish that items in the collections of other libraries that are available to a library through interlibrary loan or any other mechanism are not subject to the library's materials reconsideration policy.

(d) The materials reconsideration policy adopted pursuant to this section may:

(1) Require the applicant of a materials reconsideration application form to attest that the applicant has read, watched, or listened to the entire item that is the subject of the materials reconsideration application form;

(2) Require a person filing a materials reconsideration application form to present a government-issued photo identification, if the person possesses photo identification, that includes the person's address. If a person does not possess photo identification, then the library may require other forms of identification evidencing the person's residency in the county that the library is located;

(3) Set a maximum number of materials reconsideration application forms that any individual or group of individuals deemed working in concert may file during a rolling twelve-month period; and

(4) Allow the library board to deny a materials reconsideration application form if the library board determines that the application was filed with the intent to disrupt library operations or operation of the library board.

(e) Nothing in this section precludes a library from removing an item during the normal course of business for reasons independent of any materials reconsideration application decision.

(f) The library board must approve any materials reconsideration policy and any change to such policy.

SECTION 2. The heading in this act is for reference purposes only and does not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is

requested to include the heading in any compilation or publication containing this act.

SECTION 3. This act takes effect July 1, 2027, the public welfare requiring it.